

26STCP01261 26STCP01261

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-06-26

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Case Number: 26STCP01261 Hearing Date: June 26, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

SMITH

EMERY LABORATORIES, INC.,

vs.

CHRISTOPHER

DSOUZA.

Case No.:

26STCP01261

Hearing Date: June 26, 2026

Petitioner Smith Emery Laboratories, Inc.'s motion

to confirm the contractual arbitration award is denied without
prejudice.

Petitioner Smith Emery Laboratories,

Inc. ("Smith Emery") ("Petitioner") moves for this Court to confirm an Arbitration

Award and enter judgment. (Notice
Motion.)

Arbitration
Award

The party seeking judicial enforcement
of a private arbitration award has the burden of proving the existence of
a valid arbitration agreement as well as the award. (Toal v. Tardif (2009) 178 Cal.App.4th
1208, 1223 [holding burden not met by submitting copy of contract with
arbitration provision signed by party's attorney rather than by party
personally].)

Petitioner's motion fails to meet its
burden to prove the existence of an arbitration award and a valid arbitration
agreement. Petitioner's motion does not
attach a copy of a valid arbitration agreement.
(See Motion.) Petitioner
attempted to file a first amended petition on May 11, 2026, which was not
included in the original moving papers and was submitted after Respondent's
opposition was filed on April 30, 2026.
Petitioner's moving papers are procedurally defective and must be
denied.

Accordingly, Petitioner's motion is
denied without prejudice.

Conclusion

Based on the
foregoing, Petitioner's motion is denied without prejudice.

Moving Party to give
notice.

Dated: June _____, 2026

Hon. Daniel M.
Crowley

Judge of the Superior
Court